

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 969

BY SCOTT

AN ACT

RELATING TO STATE AFFAIRS; PROVIDING LEGISLATIVE INTENT; REPEALING CHAPTER 72, TITLE 67, IDAHO CODE, RELATING TO THE COMMISSION ON HISPANIC AFFAIRS; AMENDING SECTION 63-2552A, IDAHO CODE, TO REVISE A PROVISION REGARDING CIGARETTE AND TOBACCO PRODUCTS TAXES; AMENDING SECTION 63-3029A, IDAHO CODE, TO REVISE A PROVISION REGARDING THE INCOME TAX CREDIT FOR CHARITABLE CONTRIBUTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature to ensure that state laws provided in Idaho Code are essential for the citizens of Idaho. The Legislature recognizes the need to review provisions of Idaho Code for the purpose of eliminating bureaucracy and reducing the size of government. Accordingly, it is the intent of the Legislature to phase out the Commission on Hispanic Affairs.

SECTION 2. That Chapter 72, Title 67, Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Section 63-2552A, Idaho Code, be, and the same is hereby amended to read as follows:

63-2552A. ADDITIONAL TAX IMPOSED -- RATE. (1) In addition to the tax imposed in section 63-2552, Idaho Code, there is levied and there shall be collected an additional tax upon the sale, use, consumption, handling, or distribution of all tobacco products in this state at the rate of five percent (5%) of the wholesale sales price of such tobacco products; provided, however, that the combined tax on a cigar imposed by this section and section 63-2552, Idaho Code, shall not exceed fifty cents (\$0.50) per cigar. Such tax shall be imposed at the time the distributor:

(a) Brings, or causes to be brought, into this state from without the state tobacco products for sale;

(b) Makes, manufactures, or fabricates tobacco products in this state for sale in this state; or

(c) Ships or transports tobacco products to retailers in this state to be sold by those retailers.

(2) Fifty percent (50%) of the tax collected pursuant to this section shall be subject to appropriation to the public school income fund to be utilized to develop and implement school safety improvements and to facilitate and provide substance abuse prevention programs in the public school system and the Idaho bureau of educational services for the deaf and the blind, less two hundred thousand dollars (\$200,000) that shall be remitted annually to the Idaho state police to increase toxicology lab capacity in the bureau of forensic services for drug testing of juveniles, ~~and less eighty thou-~~

~~sand dollars (\$80,000) that shall be remitted to the commission on Hispanic
 affairs to be used for substance abuse prevention efforts in collaboration
 with the state department of education. Fifty percent (50%) of the tax col-
 lected pursuant to this section shall be subject to appropriation to the de-
 partment of juvenile corrections for distribution quarterly to the counties
 to be utilized for county juvenile probation services, based on the percent-
 age the population of the county bears to the population of the state as a
 whole. The moneys remitted to the Idaho state police shall be reviewed an-
 nually and any money in excess to the operations needs of the laboratory for
 juvenile drug testing will be deposited in the public school income fund for
 substance abuse prevention programs in the public school system. The labo-
 ratory may utilize this increased toxicology capacity for adult drug testing
 to the extent that timely testing for juveniles is not adversely impacted.~~

SECTION 4. That Section 63-3029A, Idaho Code, be, and the same is hereby
 amended to read as follows:

63-3029A. INCOME TAX CREDIT FOR CHARITABLE CONTRIBUTIONS -- LIMITA-
 TION. At the election of the taxpayer, there shall be allowed, subject to
 the applicable limitations provided herein, as a credit against the income
 tax imposed by chapter 30, title 63, Idaho Code, an amount equal to fifty
 percent (50%) of the aggregate amount of charitable contributions made by
 such taxpayer during the year to a nonprofit corporation, fund, foundation,
 trust, or association organized and operated exclusively for the benefit
 of institutions of higher learning located within the state of Idaho, in-
 cluding a university related research park, to nonprofit private or public
 institutions of elementary, secondary, or higher education or their founda-
 tions located within the state of Idaho, to Idaho education public broadcast
 system foundations within the state of Idaho, to the Idaho state historical
 society or its foundation, to the council for the deaf and hard of hearing,
 to the developmental disabilities council, to the commission for the blind
 and visually impaired, ~~to the commission on Hispanic affairs,~~ to the state
 independent living council, to the Idaho commission for libraries and to
 public libraries or their foundations and library districts or their foun-
 dations located within the state of Idaho, to the Idaho STEM action center,
 to nonprofit public or private museums or their foundations located within
 the state of Idaho, to residency programs accredited by the accreditation
 council for graduate medical education or the American osteopathic associa-
 tion or their designated nonprofit support organizations based in Idaho and
 devoted to training residents in Idaho and to dedicated accounts within the
 Idaho community foundation inc. that exclusively support the charitable
 purposes otherwise qualifying for the tax credit authorized under the pro-
 visions of this section.

(1) In the case of a taxpayer other than a corporation, the amount al-
 lowable as a credit under this section for any taxable year shall not exceed
 fifty percent (50%) of such taxpayer's total income tax liability imposed by
 section 63-3024, Idaho Code, for the year, or five hundred dollars (\$500),
 whichever is less.

(2) In the case of a corporation, the amount allowable as a credit un-
 der this section for any taxable year shall not exceed ten percent (10%) of
 such corporation's total income or franchise tax liability imposed by sec-

2 tions 63-3025 and 63-3025A, Idaho Code, for the year, or five thousand dol-
3 lars (\$5,000), whichever is less.

4 For the purposes of this section, "contribution" means monetary dona-
5 tions reduced by the value of any benefit received in return such as food, en-
6 tertainment or merchandise.

7 For the purposes of this section, "institution of higher learning"
8 means only an educational institution located within this state meeting all
9 of the following requirements:

10 (a) It maintains a regular faculty and curriculum and has a regularly
11 enrolled body of students in attendance at the place where its educa-
12 tional activities are carried on.

13 (b) It regularly offers education above the twelfth grade.

14 (c) It is accredited by the northwest commission on colleges and uni-
15 versities.

16 For the purposes of this section, a nonprofit institution of secondary
17 or higher education means a private nonprofit secondary or higher educa-
18 tional institution located within the state of Idaho, which is accredited
19 by the northwest commission on colleges and universities, or accredited
20 by a body approved by the state board of education. A nonprofit private
21 institution of elementary education means a private nonprofit elementary
22 educational institution located within the state of Idaho and accredited by
23 the state board of education pursuant to section 33-119, Idaho Code.

24 For the purposes of this section, a nonprofit corporation, fund, foun-
25 dation, trust or association that invests contributions in an endowment or
26 otherwise shall be subject to the standards of care imposed under section
27 33-5003, Idaho Code.

28 SECTION 5. An emergency existing therefor, which emergency is hereby
29 declared to exist, this act shall be in full force and effect on and after
30 July 1, 2027.